

M/S Pashupati Castings Ltd. & Ors. v. State of U.P. & Ors. (batch of ~85 connected writ petitions)

Allahabad High Court · Division Bench · 16 January 2014 · WRIT - C No. 61172 of 2012 (leading case; batch of ~85 connected writ petitions) · **Writ petitions dismissed**

HEADNOTE

Not a Supply Code case in substance — a large batch of writ petitions challenging the U.P. Electricity Duty Act, 1952 (a separate taxation statute) and a 2012 notification imposing electricity duty on the 'rate of charge' (including demand charge, not just energy/consumption charge), and the vires of Section 3(2) of the 1952 Act against Entry 53, List II, Seventh Schedule of the Constitution. All petitions were dismissed. Recorded here only for completeness of the source corpus; flagged OFFTOPIC to the Supply Code provision index, since it concerns electricity-duty taxation, not the consumer-facing billing/assessment/disconnection/security provisions this project tracks.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::electricity-duty-taxation

Validity of electricity duty on 'rate of charge' (including demand charge) under the U.P. Electricity Duty Act, 1952

HOLDING

The Court rejected the challenge to the notification dated 13.9.2012 levying electricity duty on the 'rate of charge' (including demand charges, not merely energy/consumption charges) and to the vires of Section 3(2) of the U.P. Electricity Duty Act, 1952 against Entry 53, List II of the Seventh Schedule; all ~85 connected writ petitions were dismissed. ¶ the electricity-duty discussion (unnumbered order, ~103-para judgment)

LIMITING FACTS

A batch of industrial/commercial consumers (steel, paper, cold storage, and other units) challenged a State notification increasing electricity duty (allegedly up to 500%) and its extension to demand charges, seeking a declaration that Section 3(2) of the 1952 Act was ultra vires and a refund of duty collected.

FLAG Recorded compactly given its scale (~5450 lines / ~85 connected petitioners) and its subject (electricity duty taxation under a separate 1952 Act, not the Electricity Act, 2003/Supply Code billing-assessment-disconnection framework); not exhaustively digested.